



U.S. Department
of Transportation

Research and
Special Programs
Administration

401 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9708 (EXTENSION)
ORIGINAL December 14, 1987

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9708 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.

Suzanne Helfgott
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

FEB 2 9 1991

(DATE)

Dist: PHWA

EXEMPTION HOLDER

APPLICATION DATE

U. S. Department of Energy
Washington, DC

January 30, 1991



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of Transportation

Research and
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Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9708

DEC 14 1987

1. U.S. Department of Energy, Washington, D.C., is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the shipment of magnesium metal pellets, classed as a flammable solid, in DOT Specification 44C multiwall paper bags lined with plastic film, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on U.S. Department of Energy's application dated December 8, 1986, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Magnesium metal pellets, classed as a flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Magnesium metal.

5. REGULATION AFFECTED. 49 CFR 173.220(b).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification 44C multiwall paper bag, laminated with an inside moisture-vapor barrier of plastic film. Each bag, filled with approximately 39 pounds of magnesium metal pellets, must be unitized on 42" X 42" wooden pallets and loaded into a closed transport vehicle (exclusive use) in two rows extending the length of the vehicle. A barrier of plywood must be placed between the two rows of pallets to reduce the possibility of the load shifting in transit. Each full truckload must consist of an estimated 1100 bags of 39 pounds each, or an estimated 1200 bags of 32 pounds each.

8. SPECIAL PROVISIONS.

a. Bags must be shipped via highway, in truckload quantities, via exclusive use vehicle.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or failure of the moisture-vapor barrier must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. June 30, 1989.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

DEC 14 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation,
Research and Special Programs Administration, U.S. Department of Transportation,
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA.